Registered Lease Instrument

Sub-Registrar Office, Patna

DEED OF LEASE

This Deed of Lease is made at Patna, Bihar, between Dutta Educational Trust (the Lessor) and HERITAGE BOASE INSTITUTE OF TECHNOLOGY (the Lessee).

1. The Lessor leases to the Lessee the land bearing Survey No. 298/8A measuring 39.57 acres situated at Patna for the purpose of running a technical education institution.

2. The Lessee shall pay an annual lease rent as agreed between the parties, payable in advance on or before the 10th day of April each year.

3. The Lessee shall use the demised land and the buildings thereon exclusively for educational purposes and shall not sub-lease or assign any part thereof without the written consent of the Lessor.

4. The Lessee shall maintain the premises in good condition, pay all taxes and charges, and comply with all applicable building and safety regulations.

5. The Lessor covenants that the Lessee shall peaceably hold and enjoy the demised premises during the term of this lease without interruption.

6. Either party may terminate this lease only for breach of a material covenant, after giving ninety days notice in writing and an opportunity to remedy the breach.

7. On expiry or earlier determination, the Lessee shall deliver vacant possession of the land to the Lessor, subject to the right of renewal on mutually agreed terms.

8. All disputes arising out of this deed shall be referred to arbitration in accordance with the law for the time being in force.

INSTITUTION NAME	LEASE EXPIRES ON
HERITAGE BOASE INSTITUTE OF TECHNOLOGY	**06-Oct-2035**
EXECUTED ON	
08-Oct-2024	

9. The stamp duty and registration charges on this deed have been borne by the Lessee.

10. This deed is executed in duplicate, each copy being treated as an original.

11. The Lessee shall be entitled to raise permanent structures on the demised land for classrooms, laboratories, hostels, libraries, sports facilities and ancillary buildings, in accordance with sanctioned plans.

12. The Lessee shall insure all buildings against fire and allied perils and shall furnish the policy particulars to the Lessor on request.

13. The Lessor shall execute such further documents and give such assurances as may be reasonably required by the Lessee for the purpose of obtaining statutory approvals from the regulator, the affiliating university and the State Government.

14. Any notice required under this deed shall be in writing and shall be deemed to be served when sent by registered post to the address of the party first written above.

15. The rent shall be revised once in every three years by a maximum of five per cent over the rent payable immediately before such revision.

16. Failure of either party to enforce any provision of this deed shall not constitute a waiver of the right to enforce that provision thereafter.

17. The Lessee shall not create any mortgage, charge or encumbrance over the leasehold interest without the prior written consent of the Lessor.

18. In witness whereof the parties have set their hands on the date and at the place first written above in the presence of the witnesses named below.

Charles Gola
Managing Trustee